
Comey indictment reveals a desperate Justice Department — and president

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Comey indictment reveals a desperate Justice Department — and president

To serve in [Donald Trump](#)'s Cabinet is to perform for an audience of one, and in the weeks since she was fired by the president, it's become clear why Pam Bondi's [run as attorney general](#) was a failure: She was unable to convict any of the president's enemies. [Todd Blanche](#), her deputy and temporary — at least for now — replacement, was [taking notes](#). Now he is taking action.

The [Justice Department](#) has [filed motions](#) to allow Trump to build his Big Beautiful Ballroom, [indicted Anthony Fauci's former deputy](#) over allegedly conspiring to conceal documents related to the Covid-19 pandemic and moved quickly on [superfluous investigations](#) involving the Russia probe that was opened during Barack Obama's administration.

But this week the department really nailed it. Standing alongside FBI Director Kash Patel, who may himself soon be on the way out, Blanche announced that [James Comey](#), Patel's predecessor and the president's longtime foe, was being [indicted for threatening Trump's life](#). This is exactly the kind of charge the president wanted to see — one so personal and obviously retributive that no one could possibly mistake it for blind justice.

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For those keeping track, this is the administration's second indictment against the former FBI director and federal prosecutor. The previous case charged Comey with lying to Congress — a boring charge that no doubt disappointed Trump in its lack of legal sexiness — after numerous experienced prosecutors refused to bring the indictment. It was [thrown out of court](#) in November on procedural grounds.

The latest case was brought by the U.S. Attorney for the Eastern District of North Carolina, where the alleged crime happened. In May 2025, Comey [posted a photo on Instagram](#) that showed seashells on a beach spelling out "86 47." The accompanying caption read "Cool shell formation on my beach walk."

The term "86" is well known as a verb; wait staff in restaurants have long "86'd" orders when patrons have changed their minds. It means to cancel. Or to take the early-bird special off the menu. Or to empty the trash out back. (Those painting it as some kind of a Mafia argot are confused; the proper phrase is "deep-six" not "86.") Throughout the Biden years, "86 46" was a widely circulated phrase online, standing for "Remove Biden." Former GOP Rep. Matt Gaetz of Florida [used it in a tweet](#) to celebrate that Republicans had "now 86'd" former House Speaker Kevin McCarthy, former Republican National Committee Chair Ronna McDaniel and former Senate Majority Leader Mitch McConnell — which, incidentally, shows that the saying refers to getting rid of someone in a political sense. In 2022, MAGA activist Jack Posobiec [posted something similar](#) about Biden. Even today there are websites [selling T-shirts emblazoned with "86 46."](#) If this case does go to trial, there will be an awful lot of people indicted for threatening the president.

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The next day, when he noticed MAGA's collective pearl-clutching — and was reportedly [interviewed by Secret Service agents](#) — Comey deleted the photo, denying he had posted it with any violent intent. Trump refused to believe him, and in the months since the president hasn't let it go. Now Blanche is offering Comey up to him like a cat delivering a dead mouse to their owner as a gift of love.

While some eager-beaver Republicans, like Missouri Sen. Josh Hawley, who [rushed to the microphones](#) to defend the Justice Department's actions, many in the party are concerned that this may not be a political winner. The Washington Post [quoted several GOP strategists](#) who said voters don't want Trump litigating old grievances because they're more concerned with inflation, gas prices and why he went to war with Iran. That's undoubtedly true, but in a way, it's a trap for Democrats, and they should be careful about adopting that language, which they have done in the past.

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For many decades there has been a long-standing dynamic in which Republicans leave the country in shambles for Democrats to clean up. The Democratic base — along with many Independents and even some Republicans — is clamoring for accountability, but many party officials are saying that the work ahead of them is too overwhelming and they must prioritize righting the ship. Sometimes they suggest that it's important to “lower the temperature.” This pattern began after the resignation of Richard Nixon in 1974, when his successor, the establishment Republican Gerald Ford, pardoned him. Ford's act set off a firestorm on the left, but two decades later it was being praised as steadying the country. Now we can see that it was an act that set us on the road to presidential immunity.

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Most Republican presidents who followed Ford tested the law in some fashion. For Ronald Reagan it was Iran-Contra, a scandal that also involved his vice president and successor, George H.W. Bush. For George W. Bush, it was the use of faulty intelligence as a pretext for war with Iraq, Abu Ghraib and the use of torture, and the [dismissal of nine U.S. attorneys](#) for political reasons. Then came Trump's unprecedented corruption — and his attempts to stay in office following the 2020 presidential election.

Under the leadership of Attorney General Merrick Garland, the Justice Department did take action and managed to convict many participants in the Jan. 6 insurrection. But Garland moved slowly with indicting Trump and other high-level officials, which allowed the president to escape justice.

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We are dealing with the results of those decisions today, and I fear the lesson Democrats will have learned is that it was a mistake to even try — and that it's important to focus solely on the proverbial kitchen table issues. If they do, it will give a permission slip for Republicans to repeat this cycle all over again.

The fact is that the majority of voters don't like the idea of a president bent on personal revenge, but too few of them paid attention to Trump's speeches during the 2024 campaign in which he [declared](#) "I am your retribution." His motives are clearly driven by revenge, and not because he truly thinks anyone has broken the law. After all, most of the charges against his perceived enemies are acts he has done repeatedly himself, such as making threats against various officials, including [posting images of former President Joe Biden](#) that are openly violent, unlike Comey's seashells in the sand. Trump even [made fun of Paul Pelosi](#), the husband of Speaker Emerita Nancy Pelosi, who was the victim of political violence when a man entered his house, held him hostage and hit him in the head with a hammer.

Anyone who isn't a Trump cultist or a political hack knows the difference between holding officials accountable for abuse of power, which Trump and his administration are committing every day, and a personal vendetta against a particular individual against whom the Department of Justice, acting as the presidential law firm, has been desperate to bring an indictment, no matter how flimsy. It could not be more obvious what is happening here, and Democrats must recognize the imperative of seeking accountability for the atrocities committed during the Trump administration.

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Republicans will accuse them of being hypocrites because they criticized Trump's insane prosecutions, but they shouldn't fall for that line. They should bring selective and vindictive prosecutions to an end, once and for all.

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